

RESOLUTION NO. _____

ENTITLED: “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR HIGH PLAINS BUSINESS PARK, A PLAT OF A PORTION OF SECTIONS 23 AND 24, TOWNSHIP 13 NORTH, RANGE 67 WEST, AND SECTION 19, TOWNSHIP 13 NORTH, RANGE 66 WEST OF THE 6TH P.M., LARAMIE COUNTY, WYOMING (LOCATED BETWEEN I-25 AND SOUTH GREELEY HIGHWAY, SOUTH OF COLLEGE DRIVE).”

WHEREAS, Cheyenne LEADS and Goat Systems, LLC have subdivided said land in accordance with the statutes in such cases made and provided;

WHEREAS, Cheyenne LEADS and Goat Systems, LLC the owners of the above described land, has caused a subdivision plat of said land to be made, acknowledged, and certified, particularly describing the lots, block, easements, and right-of-way; and,

WHEREAS, the above described subdivision plat has been presented to the City of Cheyenne Planning Commission for consideration; the Planning Commission has recommended that said plat be approved by the Governing Body; and the plat has been duly executed by the Development Office.

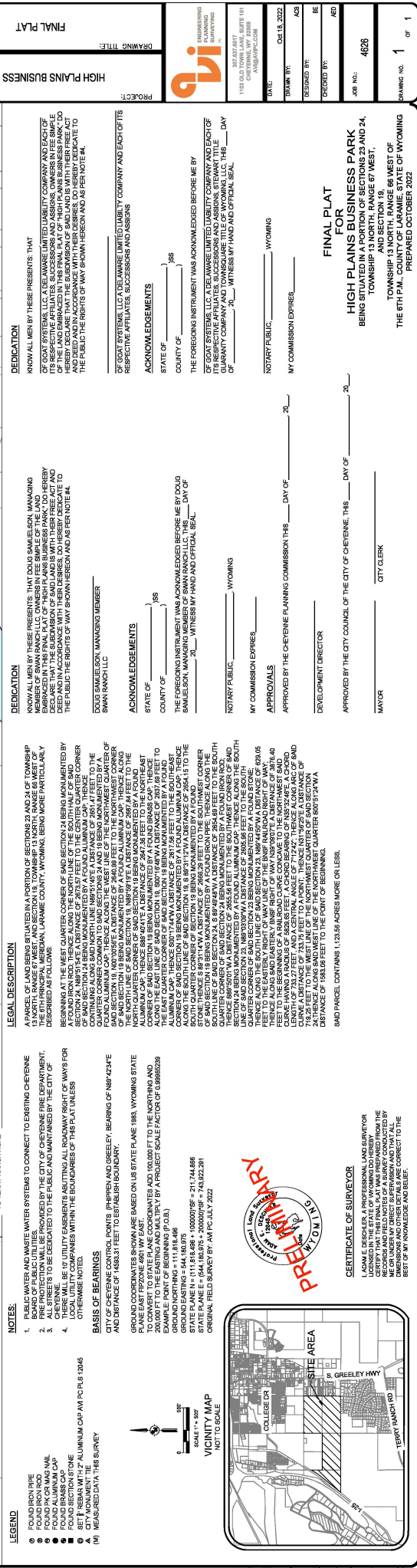
NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the subdivision described as High Plains Business Park, Cheyenne, Wyoming, be and the same hereby is approved and confirmed as presented, and that the Mayor and the City Clerk be and are hereby authorized, empowered, and directed to execute said plat, when Community Facility Fees have been paid in full.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, 2022.

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

[illegible]

CERTIFICATE OF SURVEYOR



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE PLANNING COMMISSION

OCTOBER 3, 2022

STAFF REPORT

FILE: UDC-22-00312: High Plains Business Park (Expedited Review)

REQUEST: A plat creating one 949-acre lot for light industrial development, along with one 145-acre lot under AG zoning for future development of an unknown type

LOCATION: Between Clear Creek Parkway and South Greeley Highway, south of College Drive

AGENT: AVI, PC – Brad Emmons

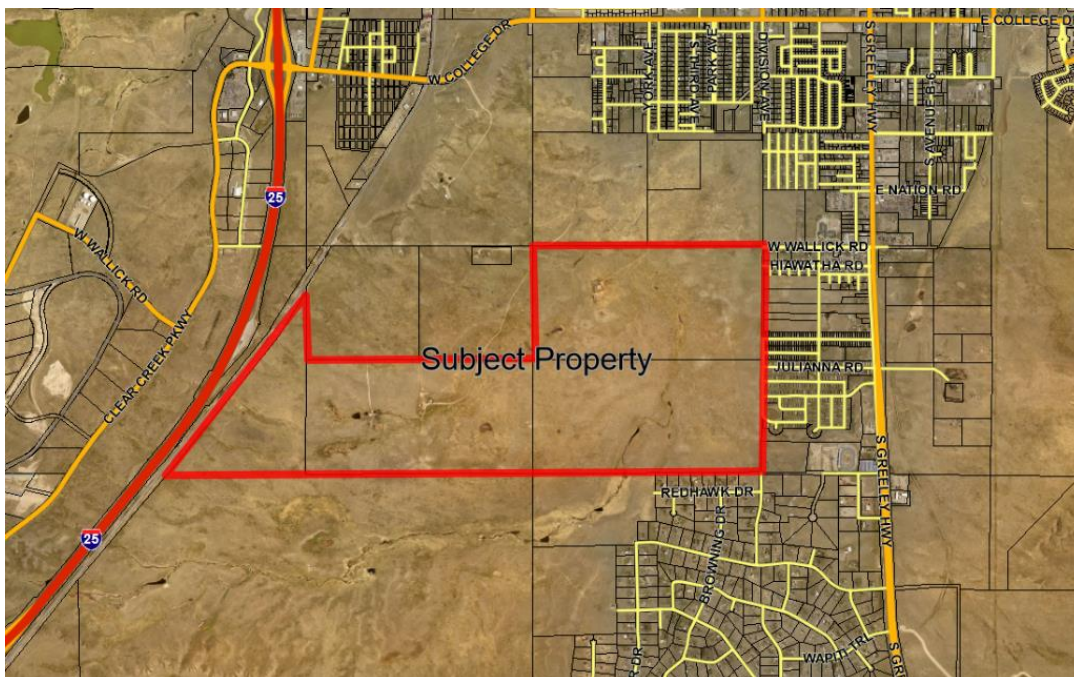
APPLICANT: Cheyenne Leads

OWNERS: Michael James Sara; David and Elizabeth Schroth; Sara, William A and Ginger L Joint Revocable Trust; Goat Systems LLC; Swan Ranch LLC

PROPOSED ZONING: LI Light Industrial and AG Agricultural

PURPOSE: A plat creating a 2 lot, 1,123.6-acre subdivision

PREPARED BY: Seth Lloyd, Planner II – Development



RECOMMENDED MOTION:

Move to **approve** the High Plains Business Park Expedited Preliminary Plat advancing the Final Plat to the Governing Body, with the staff conditions as listed in the Staff report.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.1.2 Preliminary Plat Approval
- UDC 2.1.3 Final Plat Approval
- UDC Article 4 Subdivisions
- UDC Article 5 Zoning Regulations
- PlanCheyenne

BACKGROUND:

The applicant is requesting approval of a preliminary plat for 1,123.6 acres of land. The subject property is unplatted, largely vacant land, which is concurrently being annexed to the City.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Mixed-use Employment, Mixed-use Residential, and Urban Residential	County CB, County A-2	Vacant (likely agriculture)
North	Mixed-use Employment, Community Business, Mixed-use Residential, and Urban Residential	LI Light Industrial, CB Community Business, County CB, County PUD, County A-2	Vacant (likely agriculture), Industrial, Commercial
South	Mixed-use Employment, Mixed-use Residential, Urban Residential, and Urban Transition Residential	County A-2, County AR	Vacant (likely agriculture), Rural Residential
East	Mixed-use Residential	County A-2, County MR, County CB	Mobile Home Park
West	Mixed-use Employment	LI, County CB	Vacant (possible agriculture), Industrial

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Preliminary Plat, the Commission must make the following findings required in UDC 2.1.2.d – a detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.1.2.d.1)

The Future Land Use Map found in the Comprehensive Plan has a pending request for a change to Mixed-use Employment for the subject property. Upon approval of the concurrent application, the proposed subdivision conforms to PlanCheyenne's Land Use Plan.

Foundation 1 of PlanCheyenne encourages community growth. This development is in response to market demands and is within the Urban Service Boundary. The development patterns proposed by this plat are compatible with the designations found on the future land use map.

Foundation 3 encourages the recruitment of employers to provide family-wage jobs (3.1.b) and to promote a business-friendly environment (3.1.c).

The application **complies** with this review criterion, with conditions.

- 2) The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities. (UDC 2.1.2.d.2)**

This plat facilitates development of a business park. Rights-of-way have been provided around the plat boundary to facilitate connections to nearby undeveloped property. The plat reflects sound urban design principles.

The application **complies** with this review criterion.

- 3) The division of land meets the purposes, intent, and all applicable standards in Article 4. (UDC 2.1.2.d.3)**

Community Facility Fees (UDC 4.2):

For fees based on acreage, the area of the plat is pro-rated to the nearest tenth of an acre. Lands reserved as unbuildable (for right-of-way, detention, parks, etc), are exempt from fees. Also, land zoned AG is exempt until rezoned. Fees based on 949.3 acres of land (Lot 1):

Land Acquisition Fee	\$332,255 (\$350 per acre)
Infrastructure Fee	\$332,255 (\$350 per acre)
Total Land Acquisition & Infrastructure Fees	\$664,510.00

Per UDC Section 4.2.5, Table 4-2, the Land Acquisition & Infrastructure fee are payable at the time of the signing of the final plat.

Per UDC Section 4.2.5, Table 4-2, Enhancement Fees are payable at the issuance of a building permit for each structure.

Residential Enhancement Fee	\$400 per dwelling unit
Commercial Enhancement Fee	\$1,100 per acre

Transportation Network (UDC 4.3):

The applicant provided a transportation network plan for the area surrounding the subject property. Due to the size of Lot 1, the originally-developed plan for the street network (as most recently adopted by Connect 2045) needs to be modified. The network plan associated with this submittal informs the concurrent Comprehensive Plan amendment.

The block sizes proposed do not meet standards, however, block sizes are not applicable in areas zoned LI or designated Mixed-use Employment by the future land use map – if the associated Future Land Use Map amendment is adopted, the blocks proposed by this plat would be acceptable.

Open Space (UDC 4.4):

This proposal does not meet the open space requirement for areas designated Urban Residential on the Future Land Use Map. Open Space is required at the site plan level for areas designated mixed-use employment by the future land use map; however, LI zoning is not required to provide open space.

The future Greenway plan shows a Greenway running along the eastern side of this proposed plat area. A Greenway easement should be provided to allow for this planned Greenway.

Required Improvements (UDC 4.5):

This plat appears to be able to provide all required utilities to the lots within this development.

Public Safety Fees (UDC 4.6):

Public Safety Fees are required. Per UDC Section 4.6.3.b, Public Safety Fees are payable at the issuance of a building permit for each structure. This fee is subject to change annually.

The application **complies** with this review criterion, with conditions.

- 4) Any phasing proposed in the application is clearly indicated and demonstrates a logical and well-planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned. (UDC 2.1.2.d.4)**

No phasing is specifically proposed with this project. However, due to the presence of AG zoning on the western parcel, it can be inferred that the western parcel would develop later. Infrastructure is located closer to the property on the east, so developing the eastern parcel first is logical.

The application **complies** with this review criterion.

- 5) The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts. (UDC 2.1.2.d.5)**

Drainage:

A drainage study was submitted and reviewed.

Traffic:

A traffic study was submitted and reviewed. There are multiple corrections to the study requested, but these corrections would not change the plat proposal, and the issues identified will be resolved with the Engineering Plan Review or Site Plan for the specific development of the parcel.

The application **complies** with this review criterion.

- 6) Lots proposed for development shall be buildable lots according to the existing or proposed zoning district standards, result in design and development patterns that meet the Intent and**

Applicability statements of the existing or proposed zoning district, and not aggravate nonconforming setbacks or currently adopted building and fire code access and separation requirements. (UDC 2.1.2.d.6)

The proposed plat proposes 2 buildable lots. The western lot will need to be rezoned before any non-agricultural development occurs on it.

The application **complies** with this review criterion.

- 7) All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance. (UDC 2.1.2.d.7)**

The plat does not propose any unbuildable lots.

Review criterion not applicable.

- 8) The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property. (UDC 2.1.2.d.8)**

This plat proposes right-of-way along most of the edges, which would allow neighboring properties to tie in wherever appropriate. Most of the surrounding properties are undeveloped. To the east and southeast, there is existing residential development. However, to both the south and southeast, the plat provides streets on the edge of the plat.

The application **complies** with this review criterion.

- 9) The application is not harmful to the public health, safety, and welfare. (UDC 2.1.2.d.9)**

City staff is satisfied that this proposed plat would not adversely affect the public health, safety, or general welfare.

The application **complies** with this review criterion.

- 10) Remainder lot(s) shall be clearly identified on the preliminary plat and shall not be developed or proposed for development for purposes. Remainder lot(s) shall be noted and described on all plats either graphically or by legal description. (UDC 2.1.2.d.10)**

Remainder lots are not proposed with this plat.

Review criterion **not applicable**.

- 11) The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan. (UDC 2.1.3.d.1)**

The Final Plat submitted with the application is substantially similar to the Preliminary Plat submitted. Staff has recommended conditions to be reflected on the Final Plat prior to City Council approval.

The application **complies** with this review criterion.

12) The application meets any conditions or modifications of the approved preliminary plat. (UDC 2.1.3.d.2)

Staff has recommended several conditions to the plat to bring it into further conformance with the standards of the code.

The application **complies** with this review criterion, with conditions.

13) The application meets the purposes, intent, and applicable standards of Article 4. (UDC 2.1.3.d.3)

As a concurrent Preliminary and Final Plat application, this Final Plat review criterion is covered by the equivalent Preliminary Plat review criterion (subsection 3 above).

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, comments were received regarding the following issues:

1. Greenway plan, easements, and facilities.
2. Technical issues with the plat map.
3. Technical issues with the Traffic Study.

CONCLUSION:

Staff analysis is that the application meets the review criteria and therefore recommends approval of the expedited plat application with conditions.

The general layout of the plat is compatible with the proposed Comprehensive Plan amendment, with the proposed zoning, and with surrounding development patterns. Easements need to be added, and some technical corrections or clarifications need to be provided.

ALTERNATIVES:

1. Recommend approval of the expedited preliminary plat, forwarding the Final Plat to the Governing Body.
2. Recommend approval of the preliminary plat with conditions and that a final plat addressing the conditions of approval be prepared and presented to the Governing Body (**Staff Recommendation**).
3. Recommend approval of the preliminary plat as submitted by the applicant and forward the preliminary plat to the Governing Body.
4. Recommend approval of the preliminary plat subject to staff's recommended conditions and forward the preliminary plat to the Governing Body.

5. Recommend denial of the preliminary plat based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
6. Postpone the project until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

The Planning Commission may modify staff's recommended conditions, delete conditions, add conditions, or decide contrary to staff's recommendation. In the event conditions are modified, the conditions shall relate to applicable review criteria. In the event that the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

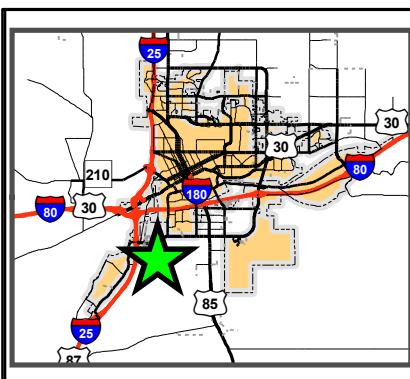
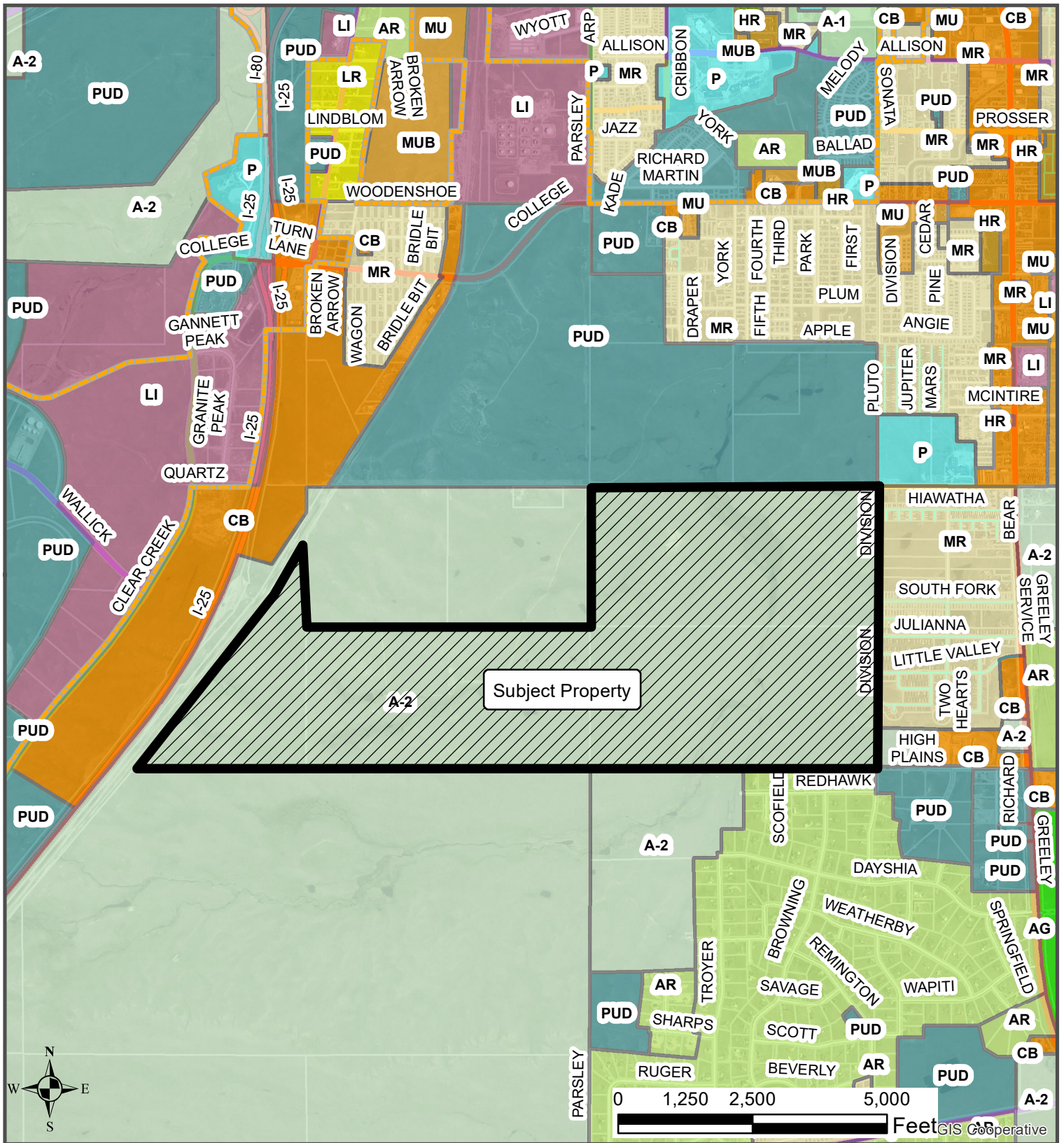
STAFF RECOMMENDATION:

Staff recommends approval of the expedited Preliminary Plat, advancing the Final Plat to the Governing Body, with the following conditions:

1. The concurrent comprehensive plan amendment be approved.
2. Prior to approval of the final plat the final plat map shall be modified as follows:
 - a. Technical corrections to the plat map.
 - b. Add Greenway easement consistent with the Greenway plan.

ATTACHMENTS:

1. Zoning Map
2. Land Use Plan Map
3. Master Application Form
4. Preliminary Plat
5. Final Plat

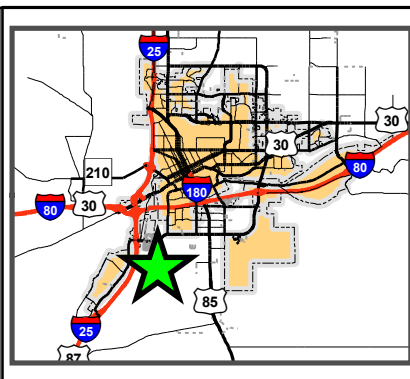
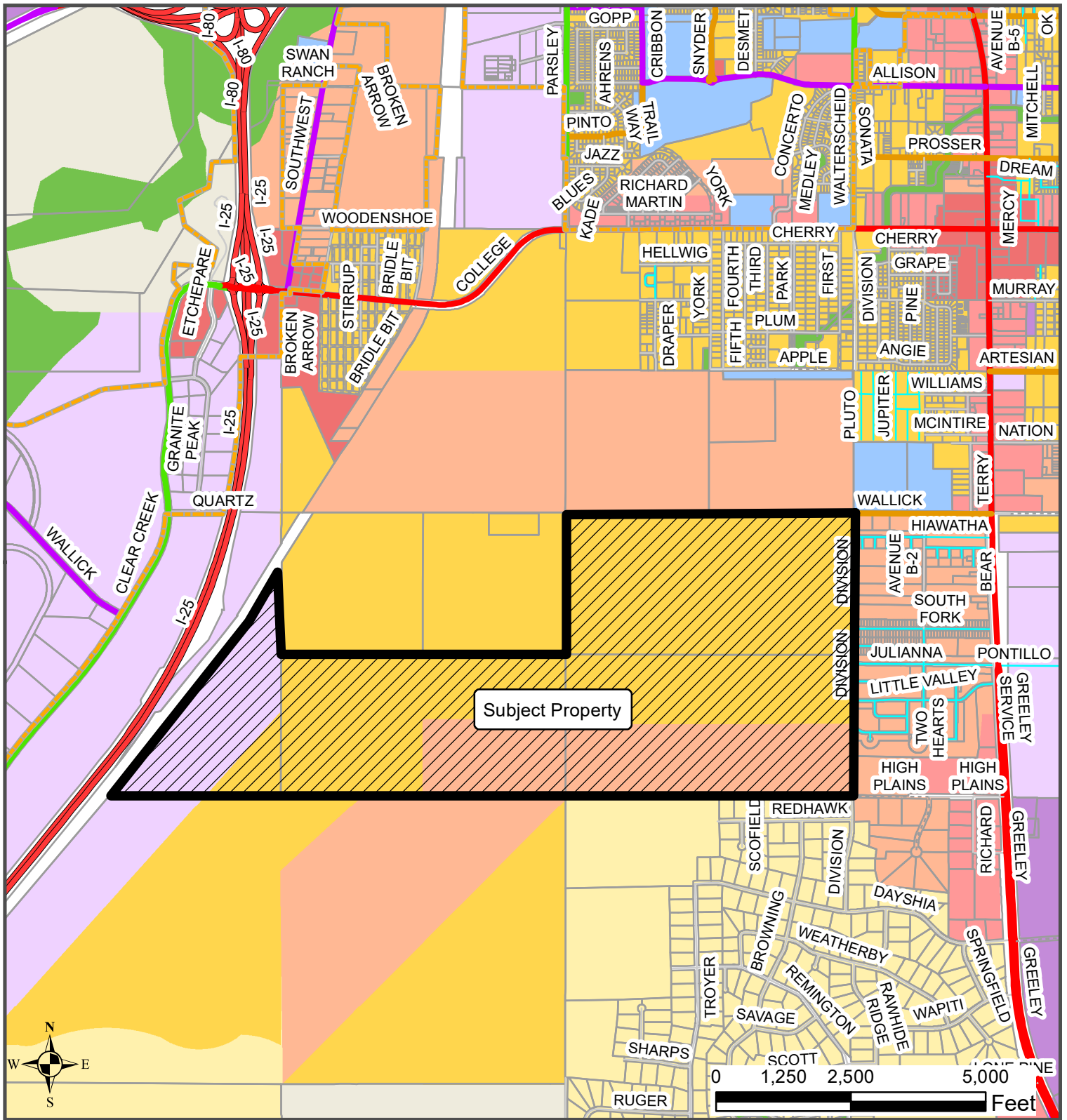


Attachment 1: Zoning Map UDC-22-00312

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt



Attachment 2: Land Use Map UDC-22-00312

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Legend

Nov19_CityLimits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		

Planning and Development: Plat - Expedited

Submission date: **17 August 2022, 4:55PM**
Receipt number: **26**
Related form version: **11**

General Information

Applicant Name:	Cheyenne Leads
Applicant Address:	121 W. 15th St, Suite 304
Applicant City:	Cheyenne
Applicant State:	WY
Applicant Zip Code:	82009
Applicant Phone:	3076386000
Applicant Email	rachellez@cheyenneleads.org
Representative Name:	AVI - Brad Emmons
Representative Address:	1103 Old Town Lane #101
Representative City:	Cheyenne
Representative State:	WY
Representative Zip Code:	82009
Representative Phone:	3076376017
Representative Email:	emmons@avipc.com
Owner Name:	Various
Owner Address:	Various
Owner City:	Various

Owner State:	Various
Owner Zip Code:	Various
Owner Phone:	Various
Owner Email:	Various
Who is the primary contact regarding this application?	Representative
Letter of Authorization	hbp sw cc loa_001.pdf msaraloe.pdf shorth loa.pdf wgsaraloe.pdf
Project Location (Street Address or General Location):	South of Quartz Drive and then east to Division Ave
Assessor's Parcel ID number(s)	R0066009, R0066007, R0056382, R0057041, R0057043
Total Project Area	1123.56
Existing Zoning	Other: A-2

Application-Specific Information

Eligibility Determination	I acknowledge that staff has determined this is eligible to be submitted as an expedited plat.
Written Statement	A proposal to plat two lots for High Plains Business Park
Current Subdivision	unplatted
Lots affected by this proposal	None
A pre-application meeting is not required, but recommended. Please indicate the date the pre-application meeting was held.	08/09/2022
Upload any pre-application meeting notes or summaries relevant to this proposal.	hbp pre app notes_001.pdf
Are any easements proposed to be added, modified, or removed?	Yes

If easements are proposed to be added, modified, or removed. Attach Franchise Utility approval letters from all affected utilities. Failure to provide this information could result in delay of application review.

Open Space Approach

Not required in AG and LI

Drainage Worksheet / Study

[hbp_dw_001.pdf](#)

[HighPlains_CncptDrngRpt_2022-08-12.pdf](#)

Transportation Worksheet / Study

[hbp_tw_02_001.pdf](#)

[High Plains Business Park Traffic Study Letter 2022-08-15.pdf](#)

Transportation Network Plan

[4626 TRANSPORTATION NETWORK MAP.pdf](#)

Preliminary Plat Drawing

[4626 PRELIM PLAT \(2022-08-17\).pdf](#)

Final Plat Drawing

[4626 FINAL PLAT \(2022-08-17\).pdf](#)

[4626 ADJACENT OWNERSHIP.pdf](#)

I acknowledge that final stamped and signed mylars are required to be submitted prior to scheduling for Governing Body introduction.

Signature / Certification

Applicant Signature

Name of signatory: Brad Emmons



[Uploaded signature image: brad emmons.jpg](#)

Please enter an email address for an email receipt.

emmons@avipc.com

